



**PLANNING &
DEVELOPMENT**

2101 O'Neil Avenue
Cheyenne, WY 82001
(307) 637-6282
cheyennecity.org

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Jeanie Anderson-Shrednik, PLA
Subject: **Contract Modification #1 to Contract #7322 between the City of Cheyenne and Sweetgrass Homeowners Association and the Sweetgrass Commercial Owners Association, Cheyenne, to outline responsibilities for both construction and maintenance of the Greater Cheyenne Greenway as well as enhanced landscaping constructed within tracts of land owned by the City and for areas within the public right-of-way within Sweetgrass, 1st and 2nd Filings.**
Date: February 17, 2026

Background:

The item for consideration is the city's consent to assignment of the Sweetgrass Maintenance Agreement, City Contract #7322, The proposed Governing Body review schedule is as follows:

- | | |
|-----------------------------|-------------------|
| • Introduction and referral | February 23, 2026 |
| • Public Service Committee | March 2, 2026 |
| • Final consideration | March 9, 2026 |

The proposed amendment will correctly identify one of the entities that comprise the Sweetgrass Association, Sweetgrass Master Association, eliminate the expiration date in the original agreement and provide for perpetual terms and add a termination provision. The document will be recorded with the Laramie County Clerk.

Attachments:

First Amendment Resolution
Original Agreement

FIRST AMENDMENT AND CONSENT TO ASSIGNMENT OF MAINTENANCE AGREEMENT

This First Amendment and Consent To Assignment of Maintenance Agreement (“Agreement”) is made as of _____, 2026 (the “Effective Date”) by and between the Sweetgrass Homeowners Association, a Wyoming nonprofit corporation, and Sweetgrass Commercial Property Owners Association, a Wyoming nonprofit corporation (collectively, the “Sweetgrass Associations”), and the City of Cheyenne, a municipality organized and existing under the laws of the State of Wyoming (“City”). The Sweetgrass Associations and the City are sometimes referred to herein collectively as “the Parties”.

WHEREAS, the Parties entered into an agreement titled “*Maintenance Agreement Between the City of Cheyenne and The Sweetgrass Owners Association and Sweetgrass Commercial Owners Association*”, also known as City Contract No. 7322, on or about April 14, 2021 (“Maintenance Agreement”); and,

WHEREAS, Section 1 of the Maintenance Agreement failed to correctly identify one of the entities that comprises the Sweetgrass Associations; and,

WHEREAS, the Parties also desire to amend the Maintenance Agreement to eliminate the previously stated expiration date of January 1, 2030, thereby providing for a perpetual term unless terminated pursuant to Section 8 of the Maintenance Agreement, as created herein; and,

WHEREAS, the Maintenance Agreement failed to include an agreement termination provision, though one was referenced, which deficiency the Parties desire to correct; and

WHEREAS, the Parties further agree that the Maintenance Agreement, as amended by this Agreement, should be recorded with the Laramie County Clerk to provide notice of the Parties’ respective rights and obligations; and,

WHEREAS, for the sake of ease and convenience, the Sweetgrass Associations also now desire to assign a portion of their rights and responsibilities under the Maintenance Agreement to the Sweetgrass Master Association, a Wyoming nonprofit corporation (“Master Association”); and,

WHEREAS, Section 13(i)—*originally Section 12(i)*—of the Maintenance Agreement requires all Parties’ consent to amend said Agreement; and,

WHEREAS, Section 13(iii)—*originally Section 12(iii)*—of the Maintenance Agreement requires the Sweetgrass Associations to secure the City’s consent to assign their interests under the Agreement.

NOW THEREFORE, in consideration of the foregoing recitals and the mutual promises contained herein, the Parties agree as follows:

1. Section 1 of the Maintenance Agreement is hereby amended in its entirety to read as follows:

“Parties. This Maintenance Agreement (“MA”) is made and entered into by and between the Sweetgrass Homeowners Association, a Wyoming nonprofit corporation (“SOA”), 1720 Carey Avenue, Suite 500, Cheyenne, Wyoming 82009, and the Sweetgrass Commercial Property Owners Association, a Wyoming nonprofit corporation (“COA”), c/o Sweetgrass Land Co. LLC, 1825 Campstool Road, Cheyenne, Wyoming 82007, herein collectively referred to as the Sweetgrass Associations (“SA”), and the City of Cheyenne, a municipality organized and existing under the laws of the State of Wyoming (“City”), 2101 O’Neil Avenue, Cheyenne, Wyoming 82001, (collectively referred to as “Parties”).”

2. Section 3 of the Maintenance Agreement is also hereby amended in its entirety to read as follows:

“Purpose. The purpose of this MA is to outline responsibilities for the maintenance of a ten (10) foot concrete trail (Greater Cheyenne Greenway or “Greenway”) and enhanced landscaping and irrigation that will be constructed within the tracts of land owned by the City and described above in Section 2 of this MA, as well as the areas located within the public right-of-way located within Sweetgrass, 1st and 2nd Filings. It is mutually understood and agreed that the Greenway, as well as enhanced landscaping and irrigation, will be constructed and installed at the expense of the Sweetgrass Developers or entities other than the City and shall be designed and constructed to City Greenway standards and other specifications as found in the City of Cheyenne and Board of Public Utilities’ Construction Specifications and Standard Drawings, 2014.

This MA shall remain in full force and effect from the effective date of this MA and shall continue in perpetuity unless and until terminated as provided under Section 8 (Termination).”

3. A new Section 8 of the Maintenance Agreement is hereby inserted to read as provided below to address the absence of a termination provision in the Maintenance Agreement:

“8. Termination.

- i. Termination for Cause. Either Party may terminate this MA upon written notice if the other Party materially breaches any provision of this MA and fails to cure such breach within thirty (30) days after receiving written notice specifying the breach and the required cure; provided, however, that nothing herein limits the non-breaching Party’s rights and remedies under Section 12.ii. [Default; Remedies]—*originally Section 11.ii.*
- ii. Termination by Mutual Agreement. The Parties may terminate this MA at any time by a written instrument executed by authorized representatives of both

Parties, specifying the effective date of termination and any agreed transition terms.

- iii. Termination for Convenience by Mutual Consent. The Parties acknowledge there is no unilateral termination for convenience; however, the Parties may mutually agree in writing to terminate for convenience consistent with subsection (b), including agreed allocation of transition tasks and costs.
 - iv. Termination Due to Force Majeure/Impossibility. If performance by a Party is rendered impossible or impracticable for a continuous period of one hundred (120) days due to Force Majeure as described in Section 13.v—*originally Section 12.v*, either Party may terminate this MA upon thirty (30) days' written notice to the other Party, effective at the end of such notice period; provided that termination shall not relieve either Party of obligations accrued prior to the effective date of termination.
 - v. Notice; Effective Date. Notices of termination shall comply with Section 13.vi [Notices]—*originally Section 12.vi*—and state the subsection relied upon, the effective date (which may not be earlier than the applicable cure or notice period), and a summary of required post-termination responsibilities. From and after the effective date of the assignment referenced herein, all notices required or permitted under this Agreement shall also be delivered to the Master Association at its principal address on record with the State of Wyoming, unless the Master Association provides written notice of an alternate address to the Parties.
 - vi. No Waiver of Immunities. Nothing in this Section waives or is intended to waive the City's governmental immunity.
 - vii. Cross-References. References in this MA to termination "for default" or "pursuant to Section 7" are deemed to refer to termination pursuant to this Section 8 and Section 12 (Default; Remedies)—*originally Section 11*, as applicable."
4. The Parties stipulate that the Maintenance Agreement was executed by Doran E. Lummis on or about April 14, 2021, on behalf of the Sweetgrass Associations, and the Parties intended for the Sweetgrass Associations identified herein to be bound as parties to the Maintenance Agreement.
5. The City hereby consents to the Sweetgrass Associations' assignment of a portion of their interests and responsibilities in the Maintenance Agreement to the Master Association, as more particularly described in the executed Memorandum of Understanding by and between the Sweetgrass Homeowners Association and the Master Association, attached hereto as **Exhibit A**, and incorporated herein by this reference. For avoidance of doubt, the Parties agree that the Memorandum of Understanding referenced herein and attached as Exhibit A shall be deemed effective as of the Effective Date of this Amendment,

notwithstanding the absence of an execution date in the Memorandum of Understanding. In the event that the Memorandum of Understanding is determined by a court of competent jurisdiction, or agreed by the parties thereto, to be invalid or ineffective due to the absence of an execution or effective date, the assignment of interests and responsibilities described herein shall be deemed null and void, and all such interests and responsibilities shall remain with and be fully enforceable against the Sweetgrass Associations.

Notwithstanding any assignment of rights or responsibilities by the Sweetgrass Associations to the Master Association, the Sweetgrass Associations shall remain jointly and severally liable with the Master Association for the performance of all obligations under the Maintenance Agreement and this Amendment. Any modification or termination of the referenced Memorandum of Understanding shall not limit or affect the City's rights or remedies under this Agreement, nor reduce the obligations owed to the City hereunder unless the City has provided prior written consent to such modification or termination.

Nothing in this Amendment shall be construed to waive the requirement for the City's prior written consent to any future assignment of the Maintenance Agreement or any interests, rights, or obligations thereunder.

6. Recording of Agreement. The Parties agree that this Amendment, together with the original Maintenance Agreement, shall be recorded with the Office of the Laramie County Clerk to provide public notice of the continuing obligations and assignments set forth herein. The Sweetgrass Associations shall be responsible for submitting the necessary documents for recording and for any associated fees. The Sweetgrass Associations shall promptly provide the City with a certified copy of the recorded Amendment and original Maintenance Agreement. Should any defect in recordation occur, the Sweetgrass Associations, at their sole cost, shall take all necessary steps to correct such defect and provide satisfactory evidence of correction to the City within thirty (30) days of notice.
7. Except as expressly amended by this Agreement, all terms and conditions of the Maintenance Agreement shall remain in full force and nothing in this Agreement shall otherwise affect the rights and obligations of the Parties thereto.
8. This Agreement may be executed in counterparts, including electronic counterparts, which together constitute one and the same instrument.

[SIGNATURES OF FOLLOWING PAGE]

IN WITNESS THEREOF, the Parties to this Amendment and Consent to Assignment of Maintenance Agreement, through their duly authorized representatives, have executed this Memorandum as of the Effective Date and certify that they have read, understood, and agreed to the terms and conditions hereof.

SWEETGRASS HOMEOWNERS ASSOCIATION

By: _____

Its: _____

SWEETGRASS COMMERCIAL PROPERTY OWNERS ASSOCIATION

By: _____

Its: _____

CITY OF CHEYENNE, WYOMING

Patrick Collins, Mayor

(SEAL)

Attest:

Kylie Soden, City Clerk

Exhibit A

MEMORANDUM OF UNDERSTANDING

This Memorandum of Understanding ("MOU") is made as of March __, 2025 (the "Effective Date") by and between Sweetgrass Homeowners Association, a Wyoming nonprofit corporation ("Sweetgrass HOA"), and Sweetgrass Master Association, a Wyoming nonprofit corporation ("Master Association"). Sweetgrass HOA and Master Association are sometimes referred to herein collectively as "the Parties".

WHEREAS, Sweetgrass HOA governs certain real property in Laramie County, Wyoming, identified in the attached **Exhibit A** under subheading "A. MASTER HOA RESPONSIBILITY" (the "Property"), pursuant to the *Declaration of Protective Covenants of Sweetgrass Planned Unit Development-1st Filing* recorded in the records of the Laramie County, Wyoming Clerk and Recorder in Book 2655 at Page 479 ("Sweetgrass Covenants"); and,

WHEREAS, the Master Association governs real property surrounding the Property pursuant to the *Master Declaration of Covenants, Conditions, and Restrictions for Sweetgrass Planned Unit Development* recorded in the records of the Laramie County, Wyoming Clerk and Recorder in Book 2905 at Page 1668 ("Master Covenants"); and,

WHEREAS, pursuant to the *Maintenance Agreement Between the City of Cheyenne and The Sweetgrass Owners Association and The Sweetgrass Commercial Owners Association a/k/a City Contract 7322* dated April 14, 2021 ("Maintenance Agreement"), the Sweetgrass HOA is required to, "maintain and replace as needed, all Enhanced Landscape (as defined in the Maintenance Agreement, with said definition incorporated herein) and irrigation installed within City owned tracts and public rights-of-way in accordance with the Site Plan Review approval, including the Property" (the "Maintenance Obligations"); and,

WHEREAS, pursuant to the Declarations in the Sweetgrass Covenants, Sweetgrass HOA shall, "assess its members for the costs of management and maintenance of the Common Areas and for other projects and activities for the benefit of those living in Sweetgrass as determined by the HOA"; and,

WHEREAS, pursuant to Section 7(a)(v) of the Master Covenants, the Master Association may, "maintain other property which it does not own if the Master Association Board determines that such maintenance is necessary or desirable to maintain the Community-Wide Standard"; and,

WHEREAS, for the benefit of Sweetgrass HOA's residents, Sweetgrass HOA wishes to enter into this MOU to delegate its Maintenance Obligations pursuant to the Maintenance Agreement, identified herein, to the Master Association; and,

WHEREAS, the Master Association's assumption of the Maintenance Obligations

is necessary and desirable for the maintenance of a community-wide standard; and,

WHEREAS, in exchange for the Master Association's assumption of said Maintenance Obligations, Sweetgrass HOA will provide the Master Association with certain compensation as provided herein.

NOW THEREFORE, in exchange of the mutual benefits and obligations set forth in this MOU and subject to the terms and conditions set forth in this MOU, the Parties agree as follows:

1. Sweetgrass HOA hereby delegates to the Master Association, and the Master Association hereby accepts and assumes from Sweetgrass HOA, Sweetgrass HOA's Maintenance Obligations, limited to the Property identified in the attached **Exhibit A** under subheading "A. MASTER HOA RESPONSIBILITY", and highlighted in yellow in the attached **Exhibit B**, as of the Effective Date (the "Delegated Maintenance Obligations"). For the avoidance of doubt, Sweetgrass HOA's Delegated Maintenance Obligations shall include the maintenance of all areas located beneath and between the applicable split rail fences, as more specifically described in the attached Exhibits.
2. In exchange for the Master Association's assumption of the Delegated Maintenance Obligations, Sweetgrass HOA agrees to pay the Master Association on or before the fifth day of each month as follows:
 - a. For the first five years following the Effective Date, Sweetgrass HOA shall pay the Master Association \$25.00 per dwelling unit located upon the Property and not governed by another Homeowners Association during the previous month (the "Maintenance Compensation Payment"); and,
 - b. On the fifth anniversary of the Effective Date and every fifth anniversary thereafter, the Master Association shall adjust the rate of the Maintenance Compensation Payment to reflect the costs it anticipates incurring in fulfilling the Delegated Maintenance Obligations, including the cost of any insurance coverage required pursuant to this MOU, and inform the Sweetgrass HOA in writing of any such adjustments, which Sweetgrass HOA will then be obligated to honor; and,
 - c. In no event shall the Maintenance Compensation Rate ever exceed the rate of the per-dwelling unit fees paid to the Master Association by any other HOA governed by the Master Covenants for the same month, including, but not limited to, Rocking A Townhomes Association, Inc. and Flying B Owners' Association.
3. The Parties stipulate that neither of them shall be liable for any damage or injury occurring on or arising out of the condition of the Property.

4. Nothing herein shall relieve Sweetgrass HOA of its insurance obligations pursuant to Section 8 of the Maintenance Agreement. The Master Association shall procure and maintain insurance coverage specified in Section 8(i) of the Maintenance Agreement, for the duration of this MOU.
5. Nothing herein shall relieve Sweetgrass HOA or lot owners within the Sweetgrass HOA of their sidewalk maintenance and snow removal responsibilities identified in Section 7(ii) of the Maintenance Agreement.
6. Nothing herein shall relieve the City of Cheyenne of its obligations and responsibilities set forth in the Maintenance Agreement, including but not limited to those specified in Section 6 of the Maintenance Agreement.
7. The Parties agree that pursuant to Section 12(vii) of the Maintenance Agreement, the City of Cheyenne does not waive its governmental immunity as it relates to the Maintenance Agreement and fully retains all immunities and defenses provided by law, Wyo. Stat. § 1-39-101, *et seq.*, with respect to any claims, demands, causes of action, injuries or damages, whatsoever, arising in any way from the Maintenance Agreement and this MOU.
8. Except as provided herein, this MOU, and the covenants and conditions therein, shall bind and inure to the benefit of the Parties, and their respective successors and assigns. Neither party may transfer, assign, or otherwise convey their interests under this agreement without the express written consent of the other party.
9. This MOU may only be terminated by mutual written agreement of the Parties.
1. The Parties' obligations under this agreement are contingent upon the City of Cheyenne's approval of Sweetgrass HOA's assignment of the Maintenance Obligations, as specified in Section 12(iii) of the Maintenance Agreement, to the Master Association.
1. This MOU constitutes the sole and entire agreement of the Parties regarding the subject matter herein. Any changes, modifications, revisions, or amendments to this MOU shall be mutually agreed upon by the Parties and shall be in writing and signed by all Parties to this MOU.
1. The Parties agree to comply with all applicable federal, state, and local laws, rules, and regulations in the performance of this MOU.
1. Failure of any party to exercise any right given hereunder or to insist upon strict compliance with regard to any term, condition or covenant specified herein, will not constitute a waiver of that party's right to exercise such right or to demand strict compliance with any term, condition or covenant under this Agreement. This MOU is not intended to create and does not create a joint venture or

partnership between any of the Parties.

1. The Parties agree they shall cooperate in good faith with each other regarding all matters necessary to carry out this MOU.

1. This MOU shall be governed by the laws of the State of Wyoming.

1. Any actions relating to or arising out of this MOU shall be brought in the courts of the First Judicial District of the State of Wyoming, Laramie County, sitting at Cheyenne, Wyoming.

IN WITNESS THEREOF, the Parties to this Memorandum of Understanding, through their duly authorized representatives, have executed this Memorandum as of the Effective Date and certify that they have read, understood, and agreed to the terms and conditions hereof.

SWEETGRASS HOMEOWNERS ASSOCIATION

By: [Signature]
Its: HOA PRESIDENT

SWEETGRASS MASTER ASSOCIATION

By: [Signature]
Its: organizer

EXHIBIT A
DESCRIPTION OF OPEN SPACE MAINTENANCE AREAS

A. MASTER HOA RESPONSIBILITY:

1. **Goodnight Trail Public R/W** (roundabout)
from College Drive to the South line of **Tract J**, Sweetgrass, 1st Filing
[±50 feet south of E. Murray Road]
2. **Tract D**, Sweetgrass, 1st Filing (**Greenway**)
along College Dr from Goodnight Tr Roundabout to Sweetgrass Dr Roundabout
3. **Tract E**, Sweetgrass, 1st Filing (**Greenway**)
from Roundabout to the North line of E. Murray Road
4. **Tract J**, Sweetgrass, 1st Filing (**Greenway**)
SE corner of Goodnight Tr & E. Murray Rd
5. **Tract H**, Sweetgrass, 1st Filing (**Greenway**)
along E. Murray Rd from Goodnight Tr to Sweetgrass Dr
6. **Sweetgrass Drive Public R/W** (roundabout)
from College Drive to the South line of **Tract H**, Sweetgrass, 1st Filing
[±50 feet south of E. Murray Road]
7. **Tract F**, Sweetgrass, 1st Filing
from Roundabout to the North line of E. Murray Road
8. **Tract L**, **Bar C** (**Greenway**)
Along West side of Sweetgrass Dr along **Bar C** frontage
9. **Murray Road R/W**, Street Trees (Future)
North of **Bar C**
10. **Sweetgrass Drive R/W**, Street Trees (Existing)
West of 4th Tracts V & W (5th Filing)
11. 4th Tract W [SHARED] (SEE 4th BELOW),
Native Areas (Private Regional Trail) maintained by Master HOA along Sweetgrass Drive.
12. 4th Tract X [SHARED] (SEE 4th BELOW),
Native Areas (Private Regional Trails) maintained by Master HOA

B. Bar C RESPONSIBILITY (Internal Neighborhood Open Space):

1. All Mailbox Clusters and associated landscaping ("trailheads")
2. **Tract M** (connection from Goodnight Tr to Greenway Tract K)
3. **Tract P** (connection from Goodnight Tr to Greenway Tract K)
4. **Tract Q** (South of **Bar C** - between **Bar C** & **Parkland**)
5. **Tract R** (West of **Bar C** - between **Bar C** & **Parkland**)

6. Tract S (connection from Goodnight Tr to North (Murray Rd Extension))

C. Flying B (Apartments) RESPONSIBILITY:

1. Tract K Sweetgrass, 1st Filing (Greenway)
between Bar C & Flying B from E Murray Rd to Sweetgrass Dr
2. Sweetgrass Dr R/W Street Trees
West side of Sweetgrass Dr along Flying B frontage

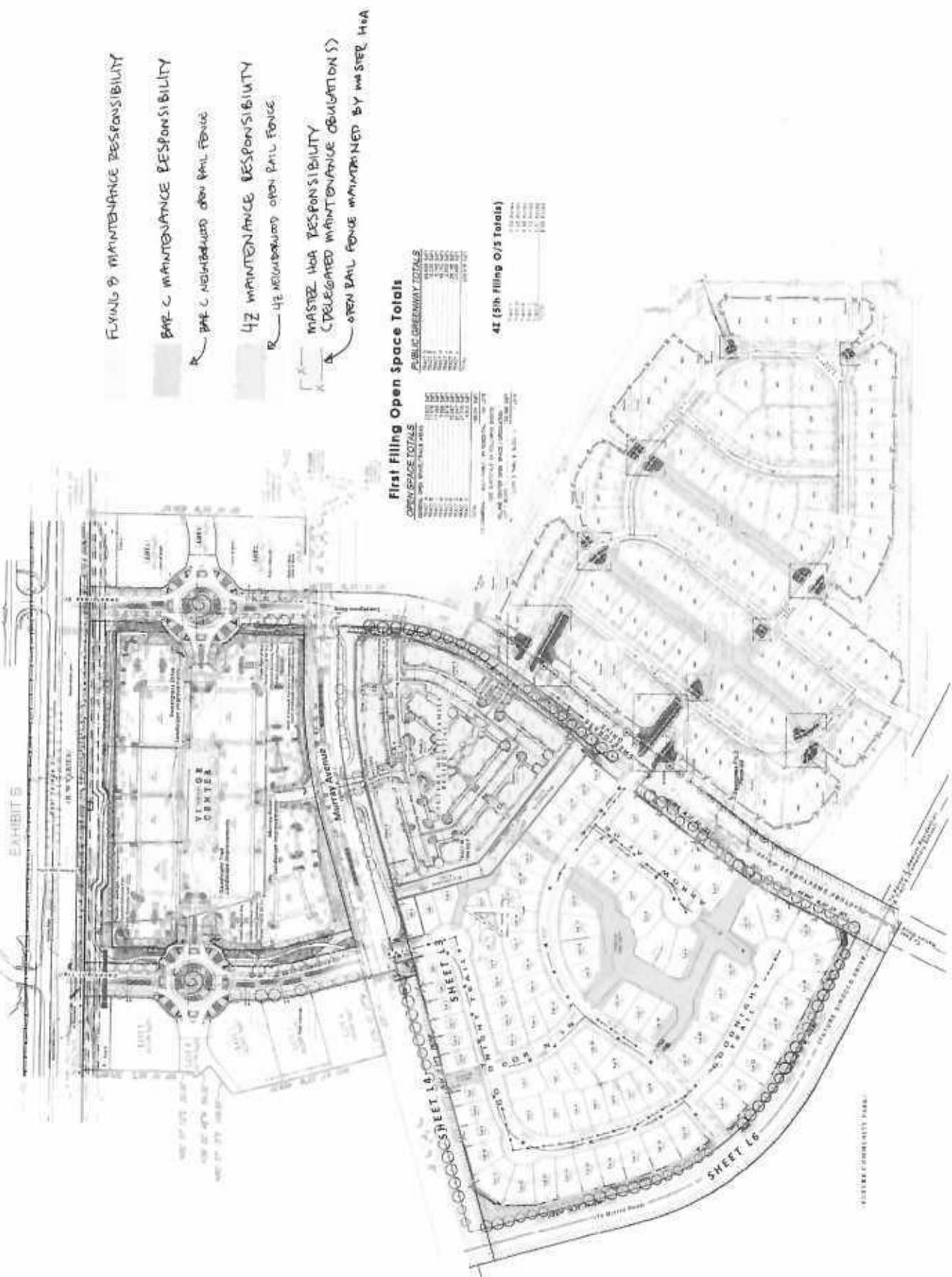
D. IZ RESPONSIBILITY (Internal Neighborhood Open Space):

1. All Mailbox clusters and associated landscaping (trailheads)
2. Tract V (Along Sweetgrass between Ledoux & Rabbit Brush)
3. Tract W (Along Sweetgrass south of Rabbit Brush)
[SHARED] (SEE MASTER HOA ABOVE).
(Native area, Regional Trail Maintained by Master HOA along Sweetgrass Drive)
"Trailheads" and Mailbox Clusters to be maintained by Internal HOA
4. Tract X (Perimeter)
[SHARED] (SEE MASTER HOA ABOVE).
(Native area & Regional Trail Maintained by Master HOA)
Five (5) "Trailheads" Mailbox Clusters to be maintained by Internal HOA
5. Tract Y (Block 12)
6. Tract Z (Block 13)

D. COMMERCIAL OPEN SPACE:

1. Tracts A, B, C, Sweetgrass, 1st Filing
2. Tracts T, & NN, R and R at Sweetgrass

EXHIBIT 5



FLYING B MAINTENANCE RESPONSIBILITY

BAR C MAINTENANCE RESPONSIBILITY

R BAR C NEIGHBORHOOD OPEN RAIL FENCE

42 MAINTENANCE RESPONSIBILITY

R 42 NEIGHBORHOOD OPEN RAIL FENCE

MASTER HOA RESPONSIBILITY
(DELEGATED MAINTENANCE OBLIGATION S)

OPEN RAIL FENCE MAINTAINED BY MASTER HOA

First Filling Open Space Totals

OPEN SPACE TOTALS	PUBLIC GREENWAY TOTALS
1.000	1.000
2.000	2.000
3.000	3.000
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42 (5th Filing O/S Totals)

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Sweetgrass Homeowners Association (HOA) Meeting Minutes

May 27, 2025

1. New Business

- a. Memorandum of Understanding (MOU) with Sweetgrass Master Association
 - i. The Sweetgrass Master Association sent an MOU to delegate its maintenance obligations to the Sweetgrass Master Association.
 - ii. The Sweetgrass HOA Board Members, William Stutz, Bryan Wenger, Douglas Kelly and Angela Crotsenberg, unanimously voted to approve the MOU with between Sweetgrass Homeowners Association, and Sweetgrass Master Association.
 - iii. Sweetgrass HOA Board President William Stutz will sign the MOU.